

25STCV08940 25STCV08940

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Case Number: 25STCV08940 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT

FCA US, LLC'S MOTION FOR JUDGMENT ON THE PLEADINGS

Moving Party: Defendant, FCA US, LLC

Opposing Party: Plaintiff, Charles Kitchel

Notice: OK

Background Facts

Plaintiff Charles Kitchel sues

Defendant FCA US, LLC ("FCA"), Eureka Chrysler Dodge Jeep Ram ("Eureka"), and Does 1 through 10 pursuant to a March 26, 2026, Complaint alleging four claims arising from the California Song-Beverly Consumer Warranty Act ("SBA") as against FCA, a negligent repair claim against Eureka, and a concealment claim against FCA.

Now before the Court is FCA's

opposed motion for judgment on the pleadings challenging the Complaint's SBA and concealment claims alleged against it.

Motion for Judgment
on the Pleadings

a. Request
for Judicial Notice

The Court takes judicial notice of FCA's webpage printout of its Code of Civil Procedure section 871.30 opt in into the procedures of Code of Civil Procedure section 871.20, et seq., with the Department of Consumer Affairs. (Evid. Code, §§ 452, subd. (h), 453.)

b. Meet
and Confer

Before filing a statutory motion for judgment on the pleadings, the moving party must contact the party whose pleading is subject to the motion and determine whether the claims to be raised in the motion can be resolved by agreement. (Code Civ. Proc., § 439, subd. (a).)

Here, the moving papers satisfy the statutory requirements by showing meet and confer efforts that failed to resolve in a resolution of the disputes now before the Court. (Motion, Downs Decl., ¶¶ 3-4, Exs. A-B; see Code Civ. Proc., § 439, subd. (a)(3)(B).)

c.
Legal Standard

Either prior to trial or at the trial—and barring statutory provisions otherwise—the plaintiff or the defendants may move for judgment on the pleadings where the appropriate ground for such a motion is the same as that arguable by general demurrer, namely, the failure to state a cause of action or defense. (*Dobbins v. Hardister* (1966) 242 Cal.App.2d 787, 791 A motion for JOP is used to challenge a pleading in the same manner as a general demurrer—that is, the challenged pleading (1) establishes that the court does not have subject-matter jurisdiction or (2) does not allege facts sufficient to support a cause of action or defense. (Code Civ. Proc., § 438, subd. (c)(1); see *Marzec v. Public Empls. Ret. Sys.* (2015) 236 Cal.App.4th 889, 900; *International Assn of Firefighters v. City of San Jose* (2011) 195 Cal.App.4th 1179, 1196.)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) In testing the sufficiency of the cause

of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) However, this analysis “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in *White v. Criddlebaugh* (2009) 178 Cal.App.4th 506, 521.)

As with a demurrer, the grounds for a motion for judgment on the pleadings must appear on the face of the pleading or be based on facts capable of judicial notice. (*Bufl v. Dollar Fin. Grp.* (2008) 162 Cal.App.4th 1193, 1202, disapproved on other grounds in *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 985-986, fn. 15.) The only significant difference between the two motions is that a motion for judgment on the pleadings is brought after the time to file a general demurrer has expired. (Code Civ. Proc., § 438, subd. (f); *Caldera Pharms. v. Regents of the Univ. of Cal.* (2012) 205 Cal.App.4th 338, 350; *International Assn of Firefighters v. City of San Jose*, *supra*, at p. 1196.

d. Discussion

I. Motion for Judgment on the Pleadings – First Through Fourth Causes of Action (Song-Beverly Act)

A. Code of Civil Procedure Section 871.21

Defendant first contends that Plaintiff's Song-Beverly Consumer Warranty Act ("SBA") causes of action are barred by the statute of limitations established in Code of Civil Procedure section 871.21.

The Court agrees.

Code of Civil Procedure section

871.20 et seq. establishes a comprehensive statutory framework governing restitution and replacement actions involving motor vehicles. Section 871.21 provides that an action subject to the chapter must be commenced within one year after expiration of the applicable express warranty and, regardless of that period, may not be brought later than six years after the date of the vehicle's original delivery, subject only to the tolling provisions expressly provided in the statute.

Plaintiff argues that Chapter 12

cannot apply because the subject vehicle was purchased before the statute's enactment. The Court disagrees.

California law presumes that

statutes operate prospectively unless the Legislature clearly expresses a contrary intent. However, the presumption against retroactivity applies only where application of the statute would attach new legal consequences to completed conduct or impair vested substantive rights. A statute that regulates the maintenance of actions filed after its operative date or modifies procedural remedies ordinarily applies to pending or future litigation absent constitutional concerns.

Here, the Legislature expressly

provided that Chapter 12 applies to manufacturers that timely elected to participate in the statutory arbitration program. Defendant has established, through judicially noticeable evidence, that FCA timely exercised that election. Accordingly, Chapter 12 governs restitution and replacement actions filed against FCA after the statute became operative.

The Court recognizes that the

subject vehicle was purchased in 2016, before enactment of Chapter 12. Nevertheless, Plaintiff did not commence this action until after the statutory scheme became operative. Under these circumstances, application of section 871.21 does not impose new obligations concerning the original vehicle sale; rather, it governs the maintenance of an action filed after the effective date of the statute against a manufacturer that elected into the statutory program.

The Complaint alleges that

Plaintiff purchased the subject vehicle on February 1, 2016, and filed this

action on March 26, 2026. More than six years elapsed between the vehicle's original delivery and commencement of this action. Plaintiff has not alleged facts demonstrating that any of the statutory tolling provisions contained in section 871.21 apply, nor has Plaintiff identified any other statutory basis avoiding the six-year limitations period.

Accordingly, Plaintiff's first through fourth causes of action are barred by Code of Civil Procedure section 871.21.

Because this conclusion is dispositive, the Court need not reach Defendant's alternative statute of limitations arguments under Commercial Code section 2725 or those relating specifically to the implied warranty claim.

B. Leave to Amend

Leave to amend is denied.

The statute of limitations issue turns upon undisputed historical facts appearing on the face of the Complaint—the vehicle's purchase date and the filing date of this action. Plaintiff has not identified, either in the pleadings or opposition, any additional facts that could bring the action within the statutory limitations period or within one of the statutory tolling provisions. Under these circumstances, amendment would be futile.

Accordingly, Defendant's motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND as to the first through fourth causes of action.

II. Sixth Cause of Action – Concealment

Defendant also seeks judgment on the pleadings as to Plaintiff's concealment claim, contending, among other things, that the economic loss rule bars recovery.

The Court agrees.

The California Supreme Court

recently clarified the scope of the economic loss rule in *Rattagan v. Uber Technologies, Inc.* There, the Court held that a plaintiff may pursue a tort claim arising in connection with a contractual relationship only where the alleged tortious conduct is independent of the parties' contractual rights and obligations and exposes the plaintiff to a risk of harm beyond that reasonably contemplated by the contract itself.

Here, Plaintiff alleges that

Defendant concealed an engine defect before the sale of the vehicle and seeks recovery of the economic consequences flowing from the alleged failure of the vehicle to conform to warranty. The Complaint, however, contains only conclusory allegations that Defendant possessed pre-sale knowledge of the alleged defect. It does not plead with the requisite specificity facts showing when Defendant acquired such knowledge, how Defendant obtained that knowledge, what information was allegedly concealed from Plaintiff, or facts establishing a duty to disclose independent of Defendant's warranty obligations.

Nor does the Complaint allege

personal injury, damage to property other than the vehicle itself, or other harm independent of the alleged contractual expectations arising from the purchase transaction. As presently pleaded, Plaintiff seeks only the economic benefit of the bargain allegedly lost because the vehicle did not perform as warranted.

Accordingly, the Court concludes

that the Complaint does not sufficiently allege an independent fraudulent inducement claim of the type recognized in *Dhital*, but instead alleges a warranty dispute for which the claimed damages are purely economic. Under these circumstances, the concealment claim is barred by the economic loss rule as explained in *Rattagan*.

Leave to amend is denied. In

opposition, Plaintiff has not identified any additional facts that could be alleged establishing Defendant's pre-sale knowledge of the alleged defect, a duty to disclose independent of the contractual relationship, or damages independent of the alleged warranty breach. Because Plaintiff has not demonstrated a reasonable possibility that these deficiencies can be cured by amendment, further leave to amend would be futile.

Defendant's motion for judgment on the pleadings is therefore GRANTED WITHOUT LEAVE TO AMEND as to the sixth cause of action.

d. Conclusion

Defendant FCA US, LLC's motion for judgment on the pleadings is GRANTED, as to the first to fourth and sixth causes of action alleged in the Complaint, without leave to amend.

Defendant FCA US, LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.